

In light of all of these issues, the Court will **grant** Li's motion with the following parameters: (1) Yan is entitled to appear for deposition remotely, as long as counsel for Yan is also on camera; (2) Yan is entitled to take frequent breaks or have shortened sessions; and (3) any additional medical restrictions must be specified in a signed note from a doctor. Yan must sit for the first portion of the deposition within 30 days.

Law & Motion
Add On

21. 9:00 AM CASE NUMBER: N25-1239
CASE NAME: ALEXANDER CAINE VS. DOES 1-20, INCLUSIVE.
HEARING IN RE: PETITION FOR WRIT OF MANDATE
FILED BY:

TENTATIVE RULING:

INTRODUCTION

Before the Court is Petitioner ALEXANDER CAINE's ("Petitioner") Petition for Writ of Mandate to rescind the Letter of Reprimand he received in October 2024, stemming from the apprehension of a suspect that occurred on March 20, 2023.

Petitioner's sole theory is that the Department failed to comply with Government Code section 3304, subdivision (d)(1), which bars punitive action if the investigation is not completed within one year of the public agency's discovery, by a person authorized to initiate an investigation, of the allegation or misconduct. That argument turns on fact questions: when the agency discovered misconduct and whether a person authorized to initiate an investigation acted with reasonable diligence. (See *Haney v. City of Los Angeles* (2003) 109 Cal.App.4th 1, 8.)

For the following reasons, **Petitioner's Writ of Mandate is granted and the Court orders Respondent to rescind the October 2024 Letter of Reprimand because it is barred by the one-year statute of limitations set out by Government Code section 3304(d)(1).**

FACTUAL BACKGROUND

A. PETITIONER RESPONDS TO AN INCIDENT ON MARCH 20, 2023

During the time periods relevant to this proceeding, Petitioner Caine was a sworn peace officer employed by Respondent City of Richmond ("City") and its Police Department ("Department"). On March 20, 2023, another Richmond Police Officer was making a vehicle stop of a box truck suspected to be stolen. (Resp. Exh. 1, Caine TR at pp. 43:15-46:9.) The suspect, Alexander Medrano, collided with the officer's patrol vehicle, injuring the officer, and attempted to flee on foot. (Id. at 43:15-46:23.) The

officer discharged his taser to stop Medrano but was unsuccessful. (Opening Brief (“Op. Br.”) at p. 3.) Medrano fled into a residential neighborhood, and the officer radioed for assistance. (Op. Br. at p. 3; Resp. Exh. 1, Caine TR at pp. 43:15-46:9; 62:13-64:18.)

Petitioner (at the time a Police Officer) responded to the scene along with multiple other Richmond officers. (Op. Br. at p. 3.) Sergeant James Moody formed a search team with Officer Jason Mallari, Officer Jameiz Terrell, and Petitioner. (Op. Br. at p. 3.) Officer Mallari, who was assigned as a canine handler, responded with a canine unit. (Op. Br. at p. 3.) While searching, Officer Terrell observed shoes sticking out of the bushes in front of one of the townhomes. (Op. Br. at p. 3.) The search team surrounded the bush, with Petitioner taking an elevated position on a staircase overlooking the bushes, from where he was able to observe Medrano partially concealed in the bushes below him. (Op. Br. at p. 3.; Petitioner’s Exhibit (“Pet. Exh.”) C at 22:44:42-22:45:06; Resp. Exh. 1, Caine TR at pp. 62:13-64:18). Officer Mallari instructed the canine to search. (Op. Br. at p. 3.; P. Exh. C at 22:44:42-22:45:18.)

At some point Caine removed or manipulated a hand-held flashlight and threw it toward the area where Medrano was concealed. (Pet. Exh. C at 22:45:06-22:45:20; Resp. Exh. 1, Caine TR at pp. 51:6-10.) Caine admits he threw the flashlight, but he continues to deny that the flashlight actually struck Medrano (a factual dispute not at issue). (Id. at pp. 52:1-11.) He admits he had the best visibility of the hidden Medrano from his vantage point. (Id. at 64:20-25).

The act of throwing the flashlight was not clearly captured by the body-worn cameras (“BWC”) worn by the officers on the scene. As is evident from the footage, all responding officers were on ground level and focused on the canine and a concealed suspect – not Caine, who was standing on an elevated staircase above where Medrano was hiding. (Pet. Exh. C).

Footage from Petitioner’s own BWC shows him moving his duty weapon aside, pausing for a few seconds, then making a quick jerking motion, but Petitioner’s hand is never visible in the footage. (Pet. Exh. C at 22:45:06-22:45:20.) None of the footage captured at the scene of Medrano’s apprehension shows Petitioner’s hand throwing the flashlight, shows the flashlight in the air, or where the flashlight landed. (Resp. Exh.1, Caine TR pp. 92:17-94:21.)

Shortly after Petitioner threw the flashlight, the suspect yelled “Ow!” and “What the fuck, man. What the hell is this for, I’m just sleeping right here, bro. What the fuck.” (Pet. Exh. C at 22:45:20-22:45:28.) BWC footage shows Medrano holding a flashlight. (Pet. Exh. B at p. 32; Pet. Exh. C at 22:45:25-28.) Petitioner ordered Medrano to place his hands up; Medrano complied, and seconds later Officer Mallari’s canine went behind the bush and made contact, biting Medrano on the arm. (Pet. Exh. C at 22:45:28-22:45:34.) Medrano was ordered to crawl out and taken into custody. (Pet. Ex. B at p. 33; Resp. Exh. 1, Caine TR at p. 64:14-18.)

B. POST-INCIDENT STATEMENTS

Due to injuries from the canine, Medrano was transported by ambulance to the hospital. (Moody Decl., ¶ 7.) While en route, Medrano told Sergeant Moody words to the effect of “you hit me in the head.” (Ibid.) Sergeant Moody understood the statement as an accusation that he personally had struck Medrano. (Ibid.) Medrano did not identify Caine, did not mention a flashlight, did not say that an officer on the staircase struck him, and did not state that an object had been thrown. (Ibid.) Because Moody knew he had not struck Medrano in the head, he did not understand the statement as a report that another officer used force. (Id. ¶ 8; Pet. Exh. B at p. 17.)

Officer Mallari conducted a brief interview of Medrano at the hospital. (Pet. Exh. G.) At the end of the interview, after Mallari had already begun walking away, Medrano claimed to have been sleeping and said, “all I know was I got woken up by a flashlight hitting me and then you popped up.” (P. Exh. G at 23:27:11-15.) Officer Mallari did not hear this statement, and he did not report it. (Pet. Exh. B at p. 19, Pet. Ex. E.). Importantly, Mallari was not a supervisor with the Department. (Resp. Exh. 1, Caine TR at p. 95:2-16.) Caine concedes that Mallari never reported that Medrano made an accusation that someone hit him in the head with a flashlight. (Id. at pp. 127:24-128:3, 129:23-130:1.) Also at the hospital, Officer Moreno photographed Medrano's injuries, including a minor injury to Medrano's head. (Pet. Exh. B, p. 33.)

The following day, Officer Brian Hoffman conducted a follow-up interview with Medrano at the Martinez Detention Facility. Officer Hoffman reviewed police reports, body-worn camera video, photographs, and Mallari's interview of Medrano. Officer Hoffman reported that, in the interview, Medrano stated “he was sleeping by a bush [and] was awoken when a flashlight landed by his face and a dog was ‘let’ on him.” (Pet. Exh. H.) That statement did not allege that an officer deliberately threw the flashlight at him, did not say the flashlight struck Medrano in the head, did not identify Caine, and did not state that the flashlight caused any injury. If anything, this statement suggested that Medrano was not struck on the head with a flashlight.

C. USE OF FORCE REVIEW PROCESS

Pursuant to Department Policy, the supervising sergeant – Moody – reviewed the written incident reports from the March 20th incident. (Moody Decl., ¶ 9.) There were two reported uses of force: taser deployments and a canine deployment. (Moody Decl., ¶ 9-10; Resp. Exh. 1, Caine TR at pp. 54:24-56:8; Resp. Exhs. 2-5.) No report mentions Caine throwing anything, using force, or striking Medrano, and Caine submitted no such report himself. (Ibid.)

As part of his review, Moody reviewed incident reports and those portions of BWC footage he believed captured the reported or known uses of force, then routed the materials through the chain of command. (Moody Decl., ¶¶ 9-11.) Then-Lieutenant Bashan also reviewed materials concerning the reported uses of force, and their review did not concern any alleged force by Caine because no such use of force was reported by any responding officer. (Moody Decl. ¶¶ 9-10; Bashan Decl. ¶¶ 4-6, 8.) Moody was at the scene, but he did not see Caine toss the flashlight; his attention was on the suspect and the canine team. (Moody Decl., ¶¶ 3, 5.)

On April 17, 2023, Sergeant Enrik Melgoza emailed Use-of-Force Review (“UOF”) Board members a March 2023 UOF summary and a link to a video for each reported use of force. (Resp. Exh. 1, Caine TR at pp. 59:1-62:5; Resp. Exh. 3, Melgoza E-Mail.) The Board materials did not report Caine’s flashlight throw, Medrano’s statements to Moody or Mallari, Hoffman’s flashlight summary, or Medrano’s “ow.” (Resp. Exh. 1, Caine TR at pp. 59:1-62:5; Resp. Exh. 4 UOF Review Board Summary for March 2023.) The Board met on April 19, 2023, and reviewed materials concerning the reported uses of force. (Resp. Exh. 1, Caine TR at pp. 59:1-62:5.) Lieutenant Ernest Loucas prepared a memorandum regarding the Board’s findings; it contains no mention of a flashlight or Caine. (Ibid.; Resp. Exh 5. April 19, 2023, UOF Meeting Notes).

Caine himself was a UOF Review Board member in 2023. He confirmed that the reported uses of force reviewed by the Board for the Medrano incident were the canine apprehension and taser deployment, not any alleged flashlight use. (Id. at pp. 54:24-56:8.) He received and reviewed the Board materials, yet nothing he saw caused him to question whether his flashlight struck Medrano, and no Board

member mentioned a flashlight strike. (Id. at 56:23-57:13).

D. OCTOBER 2023 COMPLAINT AND INVESTIGATION

On October 12, 2023, Medrano's attorney, Rachel Lorber, filed a complaint on Medrano's behalf regarding his apprehension and the use of the canine. The complaint did not mention Caine's conduct, did not reference a flashlight, and did not allege that anyone struck Medrano in the head. (Resp. Ex. 2 [October 12, 2023, CPRC complaint].) Caine admits that Lorber's complaint contains no mention of a head injury, no mention of a flashlight, and no mention of him. (Resp. Exh. 1, Caine TR at pp. 107:8-109:2.) Caine also admitted he did not know when the Department first learned that Medrano or his attorney was making an official complaint about being struck in the head with a flashlight during his apprehension. (Ibid.)

On January 31, 2024, Lieutenant England interviewed Medrano. During that interview, Medrano told Lieutenant England that he was awakened by an officer hitting him with something, that he believed it was the officer who was standing on the steps next to his head, and that he suffered a bump to the head as a result. (Pet. Exh. B, p. 10.) Lieutenant England reviewed the body-worn camera footage with the benefit of Medrano's specific allegation and was able to piece together the sequence of events: Caine adjusting his rifle sling, manipulating an object, raising his hand in a throwing motion, and Medrano's reaction. (England Decl. ¶ 5.)

Lieutenant England also interviewed Caine and together they reviewed Caine's body-worn camera video. (Pet. Exh. B, pp. 20-25.) Caine explained his tactical reasoning for throwing the flashlight and maintained that he believed it landed on the ground near Medrano and did not strike him. (Id. at p. 22.) Caine testified that he did not report the flashlight throw to a supervisor or prepare a report because he did not believe it actually hit Medrano – a position that he maintains to this date. (Id. at p. 24; Resp. Exh. 1, Caine TR at pp. 54:24-55:3.)

Lieutenant England determined that “although Sergeant Caine was adamant he did not strike Medrano, the evidence suggests Sergeant Caine did in fact strike Medrano with his flashlight.” (Pet. Ex. B, pp. 38-39.) England bases his conclusion on Medrano's scream immediately after Caine threw the flashlight; Medrano's statements to Sergeant Moody, Officer Mallari, and Officer Hoffman; and the photographic evidence of injury to Medrano's head. (Ibid.) Although the strike was not obvious to Caine – who continues to deny it happened at all – or any of the many other officer on scene – Caine testified that England's statement above forms the foundation for his Petition. (Resp. Exh. 1, Caine TR at pp. 118:18-119:12; 143:4-19.)

E. THE LETTER OF REPRIMAND AND GRIEVANCE

On October 8, 2024, Chief of Police Bisa French issued a Letter of Reprimand to then Sergeant Caine. The Letter found that Caine threw his flashlight while attempting to locate Medrano, the flashlight struck Medrano causing an audible reaction and visible injury, and Caine failed to document and report his use of the flashlight. (Pet. Exh. A.) The Letter acknowledged that Caine may not have intended to use the flashlight as a blunt-force object but that the injury sustained by Medrano and his audible reaction were evidence of it. (Ibid.)

Then-Assistant Chief Tim Simmons served Caine with the Letter of Reprimand in October 2024. (Verified Petition for Writ of Mandate (“Petition”), at ¶¶ 6, 20.) In the Petition, verified under penalty of perjury, Caine identifies the Letter of Reprimand as being served on October 10, 2024. Although his later moving papers refer to service on October 15, 2024, the service-date distinction is immaterial as

discipline was served within one year of January 31, 2024, when England learned of Medrano's allegations involving the flashlight.

Caine appealed the reprimand as a grievance, arguing in part that the discipline violated the one-year statute of limitations under Government Code section 3304(d)(1). City Manager Shasa Curl denied the grievance on December 10, 2024. (Petition at ¶ 22.)

LEGAL STANDARD OF REVIEW

Under Code of Civil Procedure section 1085 ("traditional mandamus"), writ of mandate will issue to compel the performance of an act that is enjoined by law as duty resulting from office. (Civ. Proc. Code, 1085(a).) Mandate is available only if there is no other, adequate remedy at law. (*300 DeHaro Street Investors v. Department of Housing Community Development* (2008) 161 Cal.App.4th 1240, 1254.) To obtain relief, petitioner must demonstrate (1) no 'plain, speedy, and adequate' alternative remedy exists; (2) clear, present ministerial duty on the part of the respondent; and (3) clear, present and beneficial right in the petitioner to the performance of that duty. (*Kern County Hosp. Auth. v. Department of Corrections Rehabilitation* (2023) 91 Cal.App.5th 1313, 1325.) "A ministerial duty is an obligation to perform a specific act in a manner prescribed by law whenever a given state of facts exists, without regard to any personal judgment as to the propriety of the act." (*People v. Picklesimer* (2010) 48 Cal.4th 330, 340.)

Section 1094.5 of the Code of Civil Procedure governs judicial review by administrative mandate of any final decision or order rendered by an administrative agency. A trial court's review of an adjudicatory administrative decision is subject to two possible standards of review depending upon the nature of the right involved. (Code Civ. Proc., § 1094.5, subd. (c).) If the administrative decision substantially affects a fundamental vested right, the trial court must exercise its independent judgment on the evidence. (*Strumsky v. San Diego County Employees Retirement Assn.* (1974) 11 Cal.3d 28, 32; *Bixby v. Pierno* (1971) 4 Cal.3d 130, 143.) The trial court must not only examine the administrative record for errors of law but must also conduct an independent review of the entire record to determine whether the weight of the evidence supports the administrative findings. (*Bixby v. Pierno*, *supra*, at p. 143.)

A written letter of reprimand against a police officer is considered a punitive and disciplinary action under the Public Safety Officers Procedural Bill of Rights Act (POBR). (Gov. Code, § 3303.) "Under these circumstances, we conclude that the administrative decision sustaining the charges of misconduct against [the police officer] and upholding the official reprimand substantially affected [the police officer]'s fundamental vested right in his employment. As a result, the trial court was required to exercise its independent judgment on the evidence." (*Wences v. City of Los Angeles* (2009) 177 Cal.App.4th 305, 318.)

APPLICABLE LAW

The one-year statute of limitations begins to run when a person authorized to initiate an investigation discovered or should have discovered in the exercise of reasonable diligence, the act, omission, or misconduct in question. (*Pedro v. City of Los Angeles* (2014) 229 Cal.App.4th 87, 106 (*Pedro*).) The one-year limitations period begins when a supervisor has a duty to investigate, not when a formal investigation must be opened. (*Jackson v. City of Los Angeles* (2003) 111 Cal.App.4th 899, 911 [under chief of police order, 3304(d)'s one-year limitations period begins when supervisor (sergeant I or detective II or higher) has a duty to investigate].) "Not only completion of the investigation, but also the requisite notification to the officer, must be accomplished within a year of discovery of the

misconduct.” (*Mays v. Los Angeles* (2008) 43 Cal.4th 313, 321-22.)

Section 3304(d)(1) requires speedy adjudication of misconduct that could result in discipline. Officers must be notified of proposed disciplinary action within one year of the date the employing department discovers the misconduct, absent certain exceptions not relevant here. (*Breslin v. City and County of San Francisco* (2007) 146 Cal.App.4th 1064, 174-175.)

ANALYSIS

The dispute in this writ proceeding is whether Respondent served Petitioner his Letter of Reprimand within the one-year statute of limitations set out by Government Code section 3304(d).

Respondent argues from the position that it was not aware of Suspect Medrano’s complaint of being hit in the head by a flashlight until his January 31, 2024, interview with Lieutenant England. In the context of the applicable statute of limitations, Respondent’s argument is that the January 31, 2024, interview of Medrano conducted by Lieutenant England was the first time a person authorized to initiate an investigation discovered or should have discovered through reasonable diligence the misconduct in question.

Lieutenant’s England’s Determinations Form the Basis for the Letter of Reprimand

Lieutenant England determined that “although Sergeant Caine was adamant, he did not strike Medrano, the evidence clearly shows Sergeant Caine did in fact strike Medrano with his flashlight.” (Pet. Ex. B, pp. 38-39.) Lieutenant England based this conclusion on Medrano’s scream immediately after Caine threw the flashlight; Medrano’s statements to Sergeant Moody, Officer Mallari, and Officer Hoffman; and the photographic evidence of injury to Medrano’s head. (Id.) Although the strike was not obvious to Caine – who continues to deny it happened at all – or any of the many other officer on scene – Caine testified that England’s statement above forms the foundation for his Petition. (Resp. Exh. 1, Caine TR at pp. 118:18-119:12; 143:4-19).

April 19, 2023, Use of Force Review

On April 17, 2023, Sergeant Enrik Melgoza emailed the members of the Use of Force Review Board, including Petitioner Caine, Sergeant Moody, Captain Matthew Stonebraker, Lieutenant Joseph England, Lieutenant Ernest Loucas, and five other members of the Use of Force Review Board a summary of the uses of force occurring during March 2023 and a link to the database for review of video from each use of force.

The Board met on April 19, 2023, and reviewed materials concerning the reported uses of force. (Resp. Exh. 1, Caine TR at pp. 59:1-62:5.) It is undisputed that Lieutenant Joseph England is a person who holds a supervisory role and is authorized to initiate an investigation that could lead to discipline under the Government Code since he was person who opened the investigation about the flashlight use of force on Petitioner as a result of the interview he held with Medrano on January 31, 2024.

Petitioner’s Ex G Mallari Body Worn Camera (BWC) Footage Excerpt 2

Officer Mallari’s BWC Excerpt 2 is a 20 second clip of an interview conducted by Officer Mallari on March 20, 2026, at approximately 23:26. Officer Mallari asked Medrano why someone had identified him as a driver of a stolen vehicle and if the reason why he didn’t respond to officers’ commands while he was in the bushes was because he was asleep. Towards the end of the interview Medrano states, “... I woke up with a flashlight hitting me and then you popped up.”

Petitioner's Ex D Mallari Body Worn Camera (BWC) Footage Excerpt 1

Officer Mallari's BWC Excerpt 1 is a 62 second clip of the apprehension of suspect Medrano on March 20, 2026, at approximately 22:45. At around 45 seconds there is an audible thump followed by Medrano yelling "Ow" and following up by asking, "What did you do that for, I was just sleeping here."

Lieutenant England's Determinations are based on Evidence Available at the April 19, 2023, Use of Force Review

The Court understands Respondent's position is that it did not discover Caine's act of throwing the flashlight until Lieutenant England interviewed Medrano on January 31, 2024. And that the January 31, 2024, interview was first time anyone brought to the attention of a Department supervisor the allegation that someone struck Medrano with an object. While these statements may be true, this is not the standard.

The reasonable diligence standard under section 3304(d)(1) parallels civil discovery. It asks when an authorized person knew or should have known facts giving reason to suspect wrongdoing, causation, and harm. (*Pedro*, supra, 229 Cal.App.4th 87 at 102.)

It is the Court's understanding that Exhibits D and G were available for review for the April 19, 2023, per Sergeant Melgoza's April 17, 2023, email. (Resp. Exh. 3.) Considering the footage of Medrano clearly stating that he woke up to a flashlight hitting him during his interview at the hospital, and that during the footage of Medrano's apprehension he audibly yells out "Ow" after an audible thump multiple seconds before he is contacted by the K9 officer put the Use of Force Review Board on inquiry notice of misconduct with a flashlight hitting Medrano's head had occurred at the April 19, 2023, Use of Force Review, triggering an authorized person's duty to investigate.

Thus, the one-year statute of limitation as set by Government Code section 3304(d) was triggered and began at the April 19, 2023, Use of Force Review and ran on April 19, 2024. In the Petition, verified under penalty of perjury, Petitioner Caine identifies the Letter of Reprimand as being served on October 10, 2024, although his later moving papers refer to service on October 15, 2024, the service-date distinction is immaterial, because both dates are well beyond the statute of limitations deadline of April 19, 2024.

CONCLUSION

For the reasons analyzed above, **Petitioner's Writ of Mandate is granted and the Court orders Respondent to rescind the October 2024 Letter of Reprimand because it is barred by the one-year statute of limitations set out by Government Code section 3304(d)(1).** Petitioner is ordered to prepare the order.

RESPONDENT'S OBJECTIONS TO EVIDENCE

- 1) Overruled.
- 2) Overruled.

PETITIONER'S OBJECTIONS TO EVIDENCE

Bashan Declaration

1) Overruled.

2) Overruled.

3) Overruled.

English Declaration

1) Overruled.

2) Overruled.

Moody Declaration

1) Overruled.

2) Overruled.

3) Overruled.

4) Overruled.